



INTERNATIONAL FOUNDATION FOR DIGITAL CHILD

Constitution IFDC

2023



IFDC 

Article I: Name

The name of this organization is the International Foundation for Digital Child, hereinafter referred to as "IFDC."

Article II: Vision

We envision a nation where every child is born and raised in a healthy, safe environment and is educated to become a successful citizen in the digital world.

Article III: Mission

IFDC is dedicated to mentoring children for a balanced digital life, providing support to parents, and educating all stakeholders on responsible tech use. We empower children to express themselves, nurture positive attitudes, and champion their rights through creative media tools. In collaboration with media professionals, we amplify children's voices and advocate for their rights in the digital age.

Section A: Approaches

a. **Children as Right-Holders:** We firmly believe that our children are not just beneficiaries but equal citizens entitled to full human rights. This approach obliges key stakeholders, including governments and institutions, to proactively protect children's rights at legislative, political, structural, cultural, economic, and social levels.

b. **Gender Equality and Women's Rights:** We recognize that child rights cannot be achieved without addressing women's rights. Gender equality and women's rights are fundamental to creating a healthy environment for children to thrive. Balanced power distribution between genders fosters an environment where children can develop their identities fully.

c. **Digital Well-being as a Right:** We advocate for children's right to access the internet safely. The state and parents have a shared responsibility to ensure that children have positive online experiences. We collaborate with

public and private sectors, parents, and communities to create a secure online environment for children.

d. **Preserving Creativity and Physical Engagement:** We emphasize that technology should not stifle children's creativity or physical engagement. Technology should complement, not replace, the healthy fun children have in the physical world. Therefore, we educate children about their rights and responsibilities both in the digital and physical realms.

Article IV: Registration

IFDC is committed to maintaining active registration with the Registrar of Companies in Sri Lanka and/or the National Secretariat for Registering NGOs in Sri Lanka, in strict compliance with local regulations. Additionally, IFDC may obtain registration in other countries as necessary to operate within the legal framework of those respective nations.

Article V: Principal Office

The primary office of IFDC shall be located in a place determined by the Board of Directors.

Article VI: Corporate Seal

The Board of Directors is authorized to create and modify IFDC's corporate seal as needed.

Article VII: Fiscal Year

IFDC's fiscal year generally spans from April 1st of one calendar year to March 31st of the following year, unless otherwise decided by the Board.

Article VIII: Board of Directors

Section A: Board Members

The Board of Directors shall comprise 3-9 members.

Section B: Duties of Board of Directors

1. The Board, serving as IFDC's governing body, oversees the organization's affairs, establishes governance rules and regulations, and ensures proper asset management in accordance with IFDC's Bylaws.
2. The Board approves the proposed budget in a timely manner to facilitate planning for the next fiscal year.
3. It also approves new initiatives, partnership agreements, staff recruitment for senior management positions, and promotions in these positions.
4. The Board exercises full authority to oversee all financial transactions of IFDC, directly and through the financial oversight committee.
5. Board meetings are held at least once every three months to evaluate IFDC's progress and make recommendations to the management staff.
6. The Board formulates policies regarding IFDC membership.

Section C: Election of Board of Directors

1. Elections for new Board directors may occur during the Annual General Meeting, either in person or virtually.
2. Directors are appointed by a majority vote of the existing Board of Directors.
3. The coordination of elections is the responsibility of the President or another designated board member not running for office.

Section D: Term of Office

Each Board member holds office from the date of election until the end of their second consecutive year. Officers may serve two consecutive two-year terms regardless of prior consecutive board service.

Section E: Meetings

The Board of Directors convenes at least once every three months, either via telephone, computer conferencing, or in person, as determined by the President or a majority of the Board. Meeting agendas are distributed in advance. A quorum, either in attendance or through conference call participation, consists of a majority of the Board.

Section F: Compensation

Board members do not receive compensation for their services but may be reimbursed for official expenses. They are not prohibited from serving IFDC in other compensated capacities.

Section G: Resignation and Removal

A member of the Board of Directors may resign by delivering their written resignation to the President of IFDC, a meeting of the Board, or IFDC's principal office. Such resignation is effective upon receipt (unless otherwise specified), and acceptance is not necessary unless stated. Board members may be removed for cause by a two-thirds (2/3) vote of the Board, following at least twenty-one (21) days' notice and an opportunity to be heard.

Section H: Vacancy

Any unexpired term vacancy on the Board shall be filled during the next board recruitment cycle.

Section I: Voting Limitations

Board members may cast one vote on any issue or matter presented to the Board.

Section J: Delegation of Power

In case of an officer's death, disability, or for any other valid reason, the Board may delegate that officer's duties to another member or declare the office vacant, electing a successor to serve until the next annual meeting. Such actions require at least twenty-one (21) days' notice and the right to be heard for the affected officer.

Article IX: Officers

Section A: President

1. He holds the highest authority, in consultation with the board, to enforce and implement the constitution and bylaws.
2. The President officially presides over all Board meetings.

3. The President may delegate these responsibilities to the Vice President, ensuring order and enforcement of IFDC's bylaws. The President can call special meetings and perform other duties as required.
4. Serving as Chair of the Board of Directors, the President supervises the Executive Director.
5. In the President's absence, the Vice President assumes their responsibilities.
6. Decisions made by the President on policy, program, and management matters are final and can only be challenged by the Board.
7. The President is elected by board members and endorsed at the annual general meeting.
8. The Founder of IFDC is the only person who may hold both the President and Director/CEO positions simultaneously. This arrangement remains in effect until the board fills either of these positions.

Section B: Vice President

1. The Vice President assists the President in their official duties.
2. In the President's absence, the Vice President presides over meetings and performs duties as directed or delegated by the Board.
3. The Vice President serves as a member of the Executive Committee.

Section C: General Secretary

The Secretary manages minutes for all board and committee meetings and other correspondence. The Secretary ensures the retention of all minutes, whether in printed or digital format.

Section D: Treasurer

The Treasurer oversees financial operations, including membership fee collection. Quarterly financial reports, annual financial reports, and IFDC's annual tax return filing with the Registrar of Companies are the Treasurer's responsibilities. The Treasurer also manages budgets for IFDC events during their term. BOD member appointments are signed by the General Secretary in addition to the President or a person delegated by the President.

Section E: Terms

The President, Vice President, and Treasurer serve two-year terms.

Section F: Founder

Mission and Vision: Formal consent from the founder is required when the IFDC board intends to modify the organization's mission and vision for the first time.

Foreign Office: The initiation of an IFDC foreign branch requires either the written consent or direct involvement of the founder.

Leadership: During the organization's early stages, the founder may assume leadership roles within IFDC, such as serving as President or CEO. The founder also plays a pivotal role in the selection and appointment of key staff members and board members.

Article X: Director/CEO

1. The Director/CEO serves as a permanent board member. However, they may not vote on matters involving them. Their responsibilities include working closely with the Board of Directors, fundraising, collaborating with potential supporters and collaborators, supervising paid staff, preparing annual reports, and organizing IFDC events.
2. The Director/CEO's compensation is determined by donors based on their project-related earnings history, not from members' fees. They make decisions on IFDC's program, internal administration, and policy implementation.
3. The Director/CEO is authorized to form Leadership Teams (LT) and other ad-hoc committees to support organizational management.

Article XI: Amendments to Bylaws

These bylaws may be altered, amended, or repealed, and new bylaws may be adopted by a two-thirds (2/3) vote of the Board present at any meeting if notice of the proposed change is provided in writing to the Board seven (7) days before the meeting where the change is to be voted upon. All approved changes take effect at annual general meetings.

Article XII: Audit of Books

The Board shall arrange for an annual audit of the organization's accounts by an accountant selected by the Board for this purpose. The audit must be approved by the Board before the required tax filing.

Article XIII: MEMBERSHIP

Section A: Eligibility

Individuals and organizations interested in furthering IFDC's purpose, as stated in the constitution, are eligible for membership.

Section B: Individual Membership

Individuals can sign up for IFDC membership through the website, free of charge. They are entitled to benefits outlined on the IFDC website.

Section C: Organizational Partnership

Organizations can sign up for IFDC membership through the website, free of charge. They are also entitled to benefits outlined on the IFDC website.

Section D: International Governing Council (IGC)

An international governing council is established with two specific goals: (i) to seek expertise and technical knowledge to enhance the quality of IFDC's work, and (ii) to enhance the financial integrity, accountability, and transparency of the organization.

Section E: Meetings

The Council will convene as needed and will be chaired by the President or their designee.

Article XIV: RECORDS AND PROPERTY

All records and property, whether real, personal, or mixed, entrusted to or in the possession of any Officer, Director, representative, agent, Committee Chair, Appointed Official, Special Advisor, employee, or any other party acting on behalf of IFDC, shall be considered and remain the property of IFDC. Upon

request by the President or the Board, such records and property shall be surrendered to the President or as directed by the Board.

Article XV: PROJECTS

The Board may initiate special projects to further the organization's objectives under the leadership of the Executive Director.

Article XVI: Annual General Meeting

An Annual General Meeting shall be held in each calendar year, not later than fifteen months from the preceding general meeting. The time and place will be determined by the General Secretary in consultation with the President. The Annual General Meeting will address new board appointments, policies, program plans, annual finances, and program plans. Bylaws for the annual general meeting will be developed and approved by the board.

Article XVII: DISSOLUTION

The dissolution of IFDC shall be conducted in accordance with the law of the Registrar of Companies. In a situation, where IFDC operates in a different country, law of that country shall be applicable.